

SYNTHETIC TRAINING RECORD — NOT FILED — ALL NAMES AND FACTS ARE
FICTIONAL

UNITED STATES DISTRICT COURT EASTERN DISTRICT OF VIRGINIA RICHMOND
DIVISION

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff,

v.

Civil Action No. SYN-25-0117

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC, Defendants.

DEFENDANTS' ANSWER, AFFIRMATIVE DEFENSES, AND COPPER KESTREL'S COUNTERCLAIM

Defendants answer the numbered allegations as follows. Any allegation not expressly admitted is denied.

1. Admit Asterglen licenses a platform called BeaconRoute. Admit the original schedule named twelve terminals. Deny the remaining characterization.
2. Admit Meridian Silt provided integration services. Deny that any deployment was unauthorized after the July 8 call.
3. Admit Counts I and II request the stated categories of relief. Deny entitlement.

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4–6. Admit the alleged forms, principal places of business, and citizenship solely for this synthetic case.

7. Admit subject-matter jurisdiction is alleged under 28 U.S.C. § 1332(a) and do not presently contest complete diversity or amount in controversy.

8. Admit venue for this exercise only.

9–13. Admit execution, date, term, fee, and the quoted text of Sections 3.1, 3.4, 9.2, and 11.3. Defendants state that the entire agreement controls.

14–15. Admit Copper Kestrel requested expansion on June 3 and Asterglen did not sign the proposed change order on June 10.

16. Admit BeaconRoute was configured for forty-one terminal identifiers by July 1. Deny that all identifiers represented simultaneous production use.

17. Admit Meridian Silt's project log contains the quoted sentence. Deny the log admits unlawful conduct.

18. Admit a July 8 video call occurred. Defendants state Asterglen's project manager said, "Continue while we finish the paperwork." Asterglen disputes those words and the manager's authority.

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19. Admit Asterglen reviewed an audit on July 18. Lack knowledge about the audit's completeness.
- 20–22. Admit Asterglen disabled the credential and sent an immediate-termination email on July 22; admit the email demanded \$480,000 and did not provide fifteen days to cure; admit Copper Kestrel disputed termination and did not pay. Deny that payment was due.
23. Admit Meridian Silt performed limited migration work through July 25 using configuration files already delivered. Deny that the work accessed Asterglen systems after July 22.
24. No response is required to incorporation; otherwise denied.
25. Admit a valid contract. Deny Asterglen performed, because it disabled access without the contractually required written notice and cure period.
- 26–29. Deny breach, damages, repudiation, and entitlement to relief.
30. No response is required to incorporation; otherwise denied.
31. Admit Meridian Silt knew a written agreement existed and its log quoted Section 3.4. Deny knowledge of any uncured breach.
- 32–35. Deny intentional interference, improper means, causation, damages, and entitlement.

Affirmative defenses

First defense — failure of condition precedent. Section 9.2 required written notice and fifteen calendar days to cure before either termination or breach damages. Asterglen demanded damages and terminated immediately without allowing cure.

Second defense — waiver and estoppel. Defendants allege Asterglen directed continued work on July 8, while acknowledging that the signed paperwork remained incomplete. Asterglen denies both authority and waiver.

Third defense — failure to mitigate. Defendants allege a staged reduction to twelve terminals was technically possible during a cure period.

Fourth defense — offset and avoidance of duplicate recovery. Any contract recovery must be reduced by service credits and cannot duplicate damages sought in Count II.

Fifth defense — justification. Meridian Silt alleges it performed contracted integration work in reliance on Copper Kestrel's representation that Asterglen allowed work to continue.

Defendants reserve defenses that become supported through discovery, subject to the governing rules and orders.

COUNTERCLAIM OF COPPER KESTREL LOGISTICS, LLC

1. Copper Kestrel repeats its admissions and allegations above.
2. The Pilot License was a valid contract between Asterglen and Copper Kestrel.
3. Section 9.2 required written notice describing a material breach and fifteen calendar days to cure before termination.
4. On July 22, 2024, Asterglen disabled the staging credential and declared immediate termination.
5. Asterglen did not give Copper Kestrel fifteen calendar days to return to twelve named terminals.
6. Copper Kestrel alleges it could have completed that reduction within three business days.
7. Asterglen's disablement prevented dispatch updates at the original twelve licensed terminals for four days.
8. Copper Kestrel incurred \$90,000 in substitute-routing expense and claims \$30,000 in service credits, for total alleged damages of \$120,000.

Counterclaim Count I — breach of the Pilot License

9. Copper Kestrel repeats counterclaim paragraphs 1–8.
10. Copper Kestrel alleges Asterglen breached Section 9.2 by terminating and disabling service without written notice and fifteen calendar days to cure.
11. Copper Kestrel alleges the breach caused \$120,000 in damages.
12. Copper Kestrel seeks judgment for \$120,000, interest as allowed, taxable costs, and other available relief.

Counterclaim jury demand

Copper Kestrel demands a jury trial on all issues so triable.

Requested defense judgment

Defendants request judgment denying Asterglen relief, judgment for Copper Kestrel on its counterclaim, lawful costs and interest, and any further relief proved and legally available.

Relationship of claims

For clarity in this authored record, Defendants identify the following shared questions:

- what Asterglen's project manager said and was authorized to say on July 8;
- whether the forty-one identifiers reflected authorized temporary testing or production use;
- whether Section 9.2 applies before a demand for breach damages;
- whether a fifteen-day cure would have reduced use to twelve terminals;
- the extent to which the July 22 disablement caused claimed losses; and
- whether damages on Count I, Count II, and the counterclaim overlap or offset.

Defendants state these questions to preserve the record position later asserted in opposition to Rule 54(b) entry. Asterglen disputes that they prevent separate final judgment on Count I.

Responses concerning documents

Defendants admit for this exercise only that the following synthetic documents can be authenticated by stipulation, without conceding relevance or legal effect:

1. April 15, 2024 Pilot License;
2. June 3 proposed change order;
3. June 10 load-test email;
4. Meridian Silt project log;
5. July 18 audit export; and
6. July 22 termination email.

No audio recording of the July 8 call exists. The parties preserved conflicting participant recollections in declarations. No evidentiary hearing occurred on the Rule 54(b) motion.

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Respectfully submitted on April 7, 2025.

COPPER KESTREL LOGISTICS, LLC and MERIDIAN SILT HOLDINGS, LLC

By fictional counsel for this synthetic exercise only:

/s/ Avery Example

Avery Example (fictional) Example Response Workshop 200 Training Avenue Richmond,
Virginia 23219 synthetic-response (at) example.invalid

No person or firm named on this page is real or appearing in any court.

Certificate of service

This synthetic certificate states that on April 7, 2025, the authored answer and counterclaim were served on fictional counsel through the exercise's assumed electronic filing system. It is not evidence of real filing or service.

/s/ Avery Example

Required response to counterclaim

The metadata docket states that Asterglen answered the counterclaim on April 28, 2025. That routine pleading is not reproduced because no assertion in it adds to the finality question; the docket title and filing date remain available for completeness.

Exercise authenticity statement

This answer is deterministic UTF-8 authoring source. It is intended to render as eleven pages using the page-break markers and the constraints in `metadata/intended-pdfs.json`.

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